Republic of the Philippines
ENERGY REGULATORY COMMISSION
Pasig City

ENERGY REGULATORY COMMISSION
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RESOLUTION NO. 10 Series of 2025

A RESOLUTION ADOPTING THE INTERIM GUIDELINES ON THE CONDUCT OF OPEN COMMISSION MEETINGS

WHEREAS, Republic Act No. 9136, otherwise known as the Electric Power Industry Reform Act of 2001 (EPIRA), created the Energy Regulatory Commission (ERC) as an independent, quasi-judicial regulatory body tasked to discharge functions enumerated under Republic Act No. 9136, otherwise known as the Electric Power Industry Reform Act (EPIRA) as well as other existing laws, rules and regulations;

WHEREAS, on 15 February 2024, the Commission issued Resolution No. 07, Series of 2014, entitled *"A Resolution Adopting Strategies to Ensure Completion of FY 2024 Priorities"*. Through the said Resolution, the Commission agreed to implement strategies in ensuring the achievement of targets for Fiscal Year 2024 and beyond. Said strategies include the conduct of meetings which are open to the public, which, initially, will be implemented at least once every quarter;

WHEREAS, there is a need to establish a procedural framework for the conduct of Open Commission Meetings;

WHEREAS, during the 7th Special Commission Meeting (SCM 07-2025) conducted on 04 July 2025, the members of the Commission deliberated on the draft interim guidelines which provide policies and procedures in conducting Open Commission Meetings, including guidelines on access to meeting materials and official records of the Commission;

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NOW, THEREFORE, the Commission, after thorough and due deliberation, **RESOLVED,** as it hereby **RESOLVES**, to **ADOPT** the *Interim Guidelines on the Conduct of Open Commission Meetings*, hereto attached as **Annex "A".**

This Resolution shall take effect immediately.

Let copies of this Resolution be furnished the University of the Philippines Law Center – Office of the National Administrative Register (UPLC-ONAR) as well as published in the Commission's website and such other online platform available to the Commission.

Pasig City, 4 July 2025.

FOR AND BY AUTHORITY
OF THE COMMISSION

MONALISA C. DIMALANTA
Chairperson and CEO

ERC
Office of the Chairperson and CEO

MCD2025-028156

INTERIM GUIDELINES ON THE CONDUCT OF OPEN COMMISSION MEETINGS

I. BACKGROUND

The Energy Regulatory Commission (ERC) is an independent and quasi-judicial regulatory body mandated to promote competition, encourage market development, ensure customer choice and penalize abuse of market power in the restructured electricity industry.

In line with the State policy to ensure transparent and reasonable prices of electricity in a regime of free and fair competition and full public accountability, the Commission adopted Resolution No. 07, Series of 2024, "A Resolution Adopting Strategies to Ensure Completion of FY 2024 Priorities." Through the said Resolution, the Commission agreed to implement strategies in ensuring the achievement of targets for Fiscal Year 2024 and beyond. Said strategies include the conduct of meetings which are open to the public, which, initially, will be implemented at least once every quarter.

II. RATIONALE

These interim guidelines are crafted to (i) establish a procedural framework for the conduct of Open Commission Meetings, and (ii) underscore the Commission's strong commitment to transparency and accountability, good governance and social responsibility, thereby strengthening public trust in its decision-making.

By allowing broader scrutiny and input into the discussions, the Commission aims to adopt decisions and craft rules which are more responsive to the needs of its stakeholders, strengthen consumer

education and public participation in matters affecting electricity rates, and create an environment characterized by fairness, professionalism and inclusivity.

III. COVERAGE

These Interim Guidelines shall provide policies and procedures in conducting Open Commission Meetings, including guidelines on access to meeting materials and official records of the Commission, among others.

IV. DEFINITION OF TERMS

A. AGENDA shall include the regular program of the Commission Meeting as well as the cases and/or administrative matters requested by the Services and the members of the Commission to be deliberated. For the initial implementation of these guidelines, the agenda for Open Commission Meetings shall only include rule-making matters.

B. AUDIO AND VIDEO RECORDING refers to the captured recording of both visual and audible components of the Commission Meeting.

C. COMMISSION MEETING MATERIALS refers to the evaluation memorandum and its supporting documents including the presentation slides relating to the matters included in the Agenda or manifested by the Commission to be deliberated in a Commission Meeting.

D. INTERESTED PARTY refers to any person or entity who is not an employee of or affiliated to the ERC. These shall include but not be limited to consumers, representatives of regulated entities, consumer advocate organizations, media organizations, other government agencies, or other stakeholders.

E. NOTICE OF THE MEETING refers to a notice containing the designated number, date, time, and location of the Commission Meeting. Said notice is drafted by the Head of the Secretariat and submitted to the Office of the Chairperson and CEO for approval and signature.

F. **OPEN COMMISSION MEETING** refers to the meetings conducted by the Commission at least once every quarter to deliberate matters such as proposed rules.

G. **TRANSCRIPT OF STENOGRAPHIC NOTES (TSN)** refers to the official written record of the proceedings prepared and certified by the Stenographer/s assigned and reviewed by the Head of the Secretariat.

V. POLICIES AND PROCEDURES

A. ACCESS TO MEETING MATERIALS, AUDIO AND VIDEO RECORDINGS, AND TRANSCRIPT OF STENOGRAPHIC NOTES

Any interested party may secure copies of the notice of the meeting and agenda in advance by downloading the electronic copies through the ERC's official website or other social media platforms. Initially, only the draft rules shall be made available to the public through the same channels.

One (1) week after the conduct of the meeting, copies of the Transcript of Stenographic Notes (TSN) may be downloaded through the same channels. Audio and video recordings of each Commission meeting shall be made available to the public for viewing purposes only for thirty (30) days from the date of the meeting.

B. SCHEDULE AND VENUE

Meetings that shall be opened to the public shall be scheduled by the Commission at least once every quarter, during its initial implementation, in its principal office and shall be broadcast through its official website and in all of its social media accounts.

C. MEETING PROCEDURE

1. The members of the Commission shall be provided with a copy of the notice of the meeting together with the agenda and other materials at least three (3) days before the date of the meeting.

2. On the date and time indicated in the notice, the Chairperson and CEO shall formally open the meeting. Thereafter, the Head of the Secretariat shall certify the presence of a quorum by identifying for the record the members of the Commission who are present during the meeting.

3. The Commission shall immediately proceed to adopt the agenda unless any member of the Commission requests to make any modification thereon.

4. Unless the Commission requires a detailed presentation, presenters shall be given ten (10) minutes to discuss the salient points of the case/matter for deliberation. This is to expedite the resolution of cases/matters included in the agenda.

5. The members of the Commission, starting from the most senior Commissioner unless he/she yields to another Commissioner, may ask clarificatory questions to the presenters.

6. The Commission may resolve any case/matter included in the agenda or defer resolution thereof for justifiable reason/s. The members of the Commission present during the meeting may cast their individual votes or approve/disapprove the matter unanimously through a formal motion submitted by any member of the Commission duly seconded by another member.

7. All documents/materials presented during the meeting, which have not been submitted to the Secretariat prior to the meeting, shall form part of the official records of the Commission. It shall be the responsibility of the presenter/s to submit the same to the Head of the Secretariat during or after the meeting adjourns on the same day.

8. All meetings shall be recorded by the Secretariat and shall form part of the official records of the Commission. Any recording of the Open Commission Meeting not made or

authorized by the Secretariat shall not be admissible as proof of the action taken or statements made by any member of the Commission, its legal or technical staff, or any other person or entity present during the deliberation.

9. After all items in the agenda have been deliberated or discussed, the Commission shall proceed to adjourn the meeting.

VI. EXCEPTIONS

1. The Commission reserves the right to convene an executive session during Open Commission Meetings to discuss sensitive information or any confidential matter.

2. In the event of emergencies such as calamities, natural disasters or security threats, or other unforeseen circumstances, the Commission may suspend or reschedule Open Commission Meetings.

VII. EFFECTIVITY

These Guidelines shall take effect immediately following its publication/posting in the ERC website.

/jeg/mta/hvb